IN THE COURT OF Court of Civil Court ACJM (SD)

Case No. 245/2025

Rajesh Kumar Sharma Vs Suresh Chand

IN THE MATTER OF:

Rajesh Kumar Sharma ... Plaintiff

VERSUS

Suresh Chand ... Defendant

APPLICATION ON BEHALF OF THE PLAINTIFF FOR ISSUANCE OF SUMMONS TO THE DEFENDANT

Order V, Code of Civil Procedure, 1908

MOST RESPECTFULLY SHOWETH:

Defendant's address for service: Shop No. 18, Chandni Chowk, Delhi - 110006

FACTUAL BACKGROUND

1. 1. On 01-04-2024 the plaintiff advanced a friendly loan of Rs.5,00,000 to the defendant, Suresh Chand, proprietor of M/s Super Traders, against a promissory note.

2. 2. The parties agreed that interest would accrue at 12% per annum and the loan would be repaid on or before 31-03-2025.

3. 3. The defendant made a part payment of Rs.50,000 on 15-05-2025, leaving a principal outstanding of Rs.4,50,000 and accrued interest.

4. 4. The defendant failed to pay the balance despite the due date having passed.

5. 5. A legal notice dated 15-06-2026 was served demanding payment of the outstanding amount, which the defendant ignored, giving rise to a cause of action.

6. 6. The suit for recovery of Rs.5,10,000 (principal plus interest) has been instituted before the Senior Civil Judge, Tis Hazari, Delhi, and summons have not yet been issued to the defendant.

GROUNDS

1. Breach of contract by the defendant in failing to repay the loan as per the promissory note.

2. Recovery of the principal amount of Rs.4,50,000 outstanding.

3. Recovery of interest at the agreed rate of 12% per annum.

4. Recovery of costs incurred in instituting the suit.

DOCUMENTS RELIED ON

- VALUATION
- AMOUNT_BREAKUP
- OPP_PARTY_DETAILS

- NOTICES
- LEDGER_STATEMENTS
- CONTRACT_OR_PROMISSORY
- VAKALATNAMA

PRAYER

Most respectfully showeth that this Hon'ble Court be pleased to issue summons to the defendant, Suresh Chand, at the above-stated service address through the ordinary mode of service prescribed under Order V of the CPC, and pass such further order as may be deemed necessary for the proper prosecution of the suit.

AND FOR THIS ACT OF KINDNESS, THE PLAINTIFF AS IN DUTY BOUND SHALL EVER PRAY.

Place: Deoria Civil Court
Date: 2026-10-19

Plaintiff
Through Counsel
Parvez Akhtar
Enrollment No.: 65743939